

SENATE No. 2678



MAURA T. HEALEY
GOVERNOR

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October 29, 2025

To the Honorable Senate and House of Representatives,

Pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments, I am filing for your consideration the attached legislation entitled “An Act Validating the Proceedings at the Millbury Annual Town Meeting.”

I am filing this special legislation at the request of the Town of Millbury Board of Selectmen.

The legislation ratifies the results of the Town of Millbury annual Town Meeting held on May 6, 2025 where the people of Milbury voted to adopt the MBTA Communities Zoning Bylaw. The ratification serves to resolve any question that might arise from the fact that there was a technical defect in the Town of Millbury’s Planning Board public hearing process leading to Annual Town Meeting. I understand that the town hall notice for the Planning Board’s public hearing was properly posted, albeit not for the full 14 days required by statute.

Although the town hall notice was not posted for the full numbers of days, the Planning Board met all other requirements, including a newspaper notice that met the 14-day notice requirement. As such, the Town otherwise complied with all statutory requirements. Timely ratification of the results of the election is necessary to honor the will of the voters and permit the Attorney General’s Office to issue its decision on the MBTA Communities Zoning Bylaw pursuant to G.L. c. 40, § 32. I therefore urge your prompt consideration of this bill.

Respectfully submitted,

Maura T. Healey,
Governor

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Senate, October 30, 2025 -- Message from Her Excellency the Governor (pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments) recommending legislation to validating the proceedings at the Millbury Annual Town Meeting.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act validating the proceedings at the Millbury annual town meeting.

~~_____Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure compliance with statutory housing mandates by the town of Millbury, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.~~

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 Notwithstanding section 5 of chapter 40A and section 32 of chapter 40 of the General
- 2 Laws or any other general or special law or by-law to the contrary, the zoning by-laws adopted at
- 3 the town of Millbury annual town meeting held on May 6, 2025 are hereby ratified, validated and
- 4 confirmed in all respects, notwithstanding any defects or omissions in the public hearing legal
- 5 notices prior to said town meeting.